

Slide-by-Slide Notes: Job Talk, Draft 5

Slide numbers follow the main deck of `jobtalk_slides5.tex` (40 frames; the title page is slide 1). Slides marked “carried over” keep the wording of the first-draft notes where the content still matches; all other notes are new to draft 5. Click numbers refer to the clicks within the slide.

2. Regulator Selection in a Changing Economy

Carried over from the first-draft notes (adapted where the slide changed).

- increasingly rapid industrialization, they have an even more important role
- Political scientists have shown institutions matter here for important industrial and consumer outcomes
- but they study this in models of a simple world without the industrial change that characterizes major regulated industries today

3. My Question

- Read the question as written: as electricity shifts toward renewables, are elected regulators more or less likely than appointed regulators to support renewable energy?
- **CLICK 2:** The broader version: do elections produce the socially best outcomes once the industry being regulated is itself changing? That is the question the standard model cannot answer, because it assumes the industry stands still.
- **CLICK 3:** Setting: the US electricity sector, 1990 to 2024. Fifty states, the same sector, two ways of choosing the regulator.

4. New Mexico, 2020: Ending Elected Regulators

- Tell the origin story. I was working on a different project, using cast vote records to scale voter ideology from ballot measures, and going through every measure on New Mexico's 2020 ballot. Amendment 1 stopped me: a ballot measure to take an office away from voters. How does that even get on the ballot, let alone pass?
- **CLICK 2:** It abolishes popular election of the five-member Public Regulation Commission.
- **CLICK 3:** Replaces it with three commissioners appointed by the governor from a nominating committee's list.
- **CLICK 4:** Referred by the legislature in 2019 and approved by voters in November 2020.
- **CLICK 5:** Pose the question to the room: who campaigns to remove an office from popular election?
- **CLICK 6:** My prior: the usual suspects. Monopoly utilities and fossil fuel interests, who would rather face a governor than voters. Let that sit for a beat before the next slide.

5. Who Paid for It?

Carried over from the first-draft notes (adapted where the slide changed).

- Every group contribution to the campaign for Amendment 1. Six groups, about \$760k in total. The two biggest, America Votes and the League of Conservation Voters, gave \$310k and \$300k.
- These are just the groups but I checked individual contributions and there was only one and it was 3k

- **CLICK 2:** Not the usual suspects. All six are citizen-based nonprofits: no utility, no fossil fuel producer, no industry trade group. And four of the six are climate and environmental groups: LCV, Environmental Defense Action Fund, NRDC, and Verde Voters Fund, \$350k between them.
- This was perplexing. Groups whose whole model is organizing citizens paid to take a vote away from citizens. That is what sent me to the question of how the way we select regulators shapes interest group behavior, and what that does to the regulated industry.

6. Green Donors Gave 54 PRC Candidates \$2.3k in 15 Years / ...and \$350k to End Their Elections

- Click 1: the same donors in the elections they were abolishing. Every New Mexico PRC candidate from 2006 to 2020, 54 people, grouped by their hand-coded position on renewables. They raised \$3.3M in total; \$2,318 of it came from pro-environmental donors, 0.07 percent. The Amendment 1 donors themselves gave \$1,500 (the NM LCV affiliate: \$1,000 to Fischmann, \$500 to Yazzie).
- The bar is on a \$10,000 scale on purpose: small but present. Fischmann is the biggest recipient at \$1,318.
- **CLICK 2:** Same figure, rescaled to the amount the same four climate groups spent to end those elections: \$350k, the dashed line. The \$2.3k bar flattens to nothing.
- Pre-empt the supply-side objection: pro-renewable candidates ran in every cycle, eight ran as strongly pro-renewable, four of them won. There were candidates to fund; the groups chose not to.
- Georgia button goes to the same pattern over 25 years in the archetypal elected state, if asked.

7. What I Show

- Five findings, in the order of the paper. Keep each to one sentence; the rest of the talk is the evidence.
- Outcome: elected regulators generate less renewable electricity. (Do not say significantly; the within-state wild p is 0.22, and the weight of the paper is the mechanism.)
- Why: green NGOs lobby far more productively than they campaign, so insulated regulators are where their influence counts.
- Allocation: despite being grassroots organizations, they put far more into lobbying than campaigning.
- Revealed preference: when they do campaign, their largest sums go to ending elected commissions, as you just saw.
- Electoral constraint: costly renewable measures trail other costly measures even among the most Democratic voters, so there is no electoral reward for acting on the transition.
- **CLICK 6:** The two sentences that tie it together: elections may fail consumers when policy involves temporal trade-offs, and green NGOs respond by shifting from citizens toward insulated channels.
- **CLICK 7:** The broader lesson, which is the contribution beyond energy: where interest groups seek influence depends on how institutions select decision makers, even for groups built on mass participation.

8. The Standard View: Elections Serve Consumers

- One slide on the model, kept short. Two types of citizens with respect to a regulated industry: consumers, the majority, who want lower prices, and business interests, the minority, who want higher prices. Cite Besley and Coate once and move on.
- **CLICK 2:** Appointment is pro-business: regulation is bundled with every other issue when voters elect the governor, so concentrated interests win on the regulatory issue.
- **CLICK 3:** Election is pro-consumer: the regulator's stance on prices is the only salient issue in keeping the job.
- **CLICK 4:** The point to land: this is a simple world. Two interests, one axis of conflict, over price. Everything that follows is about what happens when that stops being true.

9. What Happens When Industries Undergo Change?

- Define industrial change here, once, so it does not derail later: a new technology or input lets new producers compete with the incumbent industry, and changes when costs and benefits arrive. Railroads to trucking, landlines to wireless, fossil fuels to renewables.
- **CLICK 2:** New interests form around the new technology.
- **CLICK 3:** New actors enter and put pressure on the incumbents: business against business, not only business against consumers.
- **CLICK 4:** And a new kind of trade-off: if there are externalities, you often pay now to benefit later.
- **CLICK 5:** The consequence for the model: preference heterogeneity within both the business and the consumer camps. Cross-cutting coalitions, so regulators no longer face pro-business incentives when appointed and pro-consumer incentives when elected.

10. Cross-Cutting Coalitions: Electricity

- Walk the two-by-two. Columns are the two positions: the status quo (low price today) and the transition (invest now, save later). Rows are the two citizen types from the standard model.
- Business splits: fossil fuel producers and incumbent utilities on one side, renewable developers and in-state manufacturers on the other. Developers need resource plans, rate treatment, and siting rulings that incumbents oppose.
- Consumers split too: the large majority of price-sensitive consumers, and a small, organized group willing to pay more today: green NGOs and pro-transition citizens.
- The line to stress on green NGOs: grassroots in membership, but staffed by professionals with elite access (Skocpol). That duality is the whole paper.

11. What Is 'Pro-Consumer' Under Industrial Change?

- In the standard view pro-consumer means low prices today. In the transition that is no longer well defined.
- New sources need investment now, passed to ratepayers in the short term, even where renewables are cheaper over their life.
- Fossil fuels are limited and costly; alternatives keep getting cheaper.
- Uncontained climate costs fall on all consumers.
- Regulatory consequences unfold over horizons far longer than an electoral cycle.

- So what is good for consumers today can differ from what is good for them in the long run, and most people discount the future, so they prefer the low price today. The backup button has the discounting and externality argument if someone wants the welfare benchmark spelled out.

12. The Argument

- **CLICK 1:** Electoral path. Elected regulators answer to voters, who judge mostly on bills, and the incumbent industry is far better organized in campaigns. Both forces push toward the status quo.
- **CLICK 2:** Regulatory path. Insulated regulators can rely on expertise, testimony, and regulatory lobbying. Green groups are weak in elections but strong inside: elite organizations, persistence in dockets, and often a seat in the governor's coalition. Appointment gives them a chance to compete.
- **CLICK 3:** Implication: renewable growth is slower on average where voters elect the Commission. Partisanship still matters; this is a comparison at the same partisan composition.
- Backup buttons go to the detailed argument slides (electoral arena, inside the beltway) for questions.

13. Setting: Public Utility Commissions (PUCs)

- Quick orientation for non-energy people. Created in the early 1900s to regulate utilities where there is no market competition; mandate is reasonable and nondiscriminatory rates and good service.
- They oversee about one percent of US GDP, and today far more than price setting: resource plans, rate treatment of new investment, siting and interconnection, reliability.
- Demand growth, cheaper wind and solar, and climate change all push toward integrating alternatives, so these decisions are where the transition is actually made.
- Scope in one line: selection should matter where the Commission governs generation (vertically integrated states), less where restructuring or public ownership removed it. The Authority button has the table.

14. How States Select Their Commissioners

- About a dozen states elect; the rest appoint, by the governor, the legislature, or a mix.
- **CLICK 2:** Only two states switch in the period: Tennessee, elected to appointed in 1996; New Mexico, appointed to elected in 1999 and back to appointed in 2023. These two are the within-state identification, so flag them here.

15. Research Design

- Three pieces of evidence, all exploiting state-level variation in institutional design, 1990 to 2024. The data-sources slide is now in the appendix behind the Data and sources button; if asked: EIA generation excluding hydro, an original roster of 1,287 Commissioner spells with party from the appointer (97/72 percent agreement with personal party), Snyder normal vote, lagged GDP, manufacturing, population, NREL endowments, RPS and restructuring ledgers.
- Selection and generation: renewable share of generation in 50 states, with an original roster of every Commissioner and their partisanship, so I compare elected and appointed Commissions of the same partisan composition.

- **CLICK 2:** Interest group allocation: campaign finance in Commissioner races and energy ballot campaigns; participation in PUC proceedings with effort converted to dollars; matched elected and appointed states; New Mexico before and after 2023; Amendment 1.
- **CLICK 3:** Voter behavior: every statewide energy ballot measure since 2000; every local renewable or climate measure that imposes a cost where complete lists exist; precinct returns; and cast vote records that link each vote to the voter's partisan choices.

16. Part I opener: At the same partisan composition, do elected Commissions produce less renewable growth?

- Say it as a question and move on. Composition is held fixed throughout Part I.

17. The Identifying Variation

- Two sources of variation, very different in size. Commission composition varies within nearly every state: 48 of 50, with a within-state standard deviation of 0.34 against 0.40 overall.
- **CLICK 2:** The selection institution changes in only two states, Tennessee in 1996 and New Mexico in 1999 and 2023.
- **CLICK 3:** So with state fixed effects, the elected-appointed difference comes from Tennessee and New Mexico alone: it is how each state changed when its method changed. Be upfront about that now so the result slide does not surprise anyone.
- **CLICK 4:** Specification: renewable share on lagged elected, lagged Democratic composition, their interaction, lagged controls, state (or region) and year fixed effects, and state trends in the preferred version.
- **CLICK 5:** Quantity of interest: elected minus appointed at a 50-50 Commission, beta one plus half of beta three.
- **CLICK 6:** Standard errors clustered by state, plus inference built for two switching states.

18. Elected States Sit in the Wind Belt

Carried over from the first-draft notes (adapted where the slide changed).

- This figure shows one of the various problems with my comparison of elected and appointed states.
- On the left are the raw averages. Elected states actually produce more renewable electricity than appointed states, where Six of the twelve are in the Plains wind belt: North Dakota, South Dakota, Oklahoma, Nebraska, New Mexico and Montana.
- They have about twice the developable wind of the appointed states, and the appointed group includes the low-resource Southeast.
- On the right, I net out wind and solar potential within each year, so showing each state's renewable share compared with what a state with the same wind and sun would be predicted to have in that year.
 - this is a purely descriptive exercise of course
 - just a linear adjustment for two resource measures, with no controls for partisanship or anything else.
 - Basically examining whether elected states generate more or less than their resources predict.

- Because the regression is run year by year, the payoff to wind (b_t) is allowed to grow over time. In 1995, good wind predicts almost nothing; by 2020 it predicts a lot. That's exactly the pattern the raw means conflate with selection.

If asked how the adjustment works: for each year t separately, a regression across the 50 states, $\text{Renew}_{st} = a_t + b_t W_s + c_t PV_s + e_{st}$. W_s is NREL wind potential relative to the state's size: $\log(1 + \text{developable wind GWh} / \text{the state's average total generation})$. PV_s is the state's solar PV capacity factor. Both are fixed per state. It keeps the residual, adds back that year's average so the scale still reads as a renewable share, and averages the result for elected and appointed states.

19. In Tennessee and New Mexico, Renewable Share Was About 9 Points Lower While Elected / Each Switch Alone Gives the Same Answer / Net of State Partisanship, Still About 5 Points Lower

Carried over from the first-draft notes (adapted where the slide changed).

- The cleanest way to hold geography fixed is to compare a state with itself.
- Only two states changed how they select Commissioners in my period. Tennessee moved from election to appointment in 1996. New Mexico moved from appointment to election in 1999, and back to appointment in 2023.
- My preferred specification uses state fixed effects plus a state-specific linear trend, so each state is compared with its own path. State fixed effects absorb the resource endowment.
- What's left is the trajectory, and the trend matters because the Plains states built wind along steep paths driven by the production tax credit and resource quality, not by Commission decisions. New Mexico's elected period happens to coincide with that build-out.
- **CLICK 1:** With that specification, an elected Commission is associated with renewable shares about 9 points lower, at a 50-50 Commission.
- **CLICK 2:** Neither state is driving it alone: identified from Tennessee's switch only (New Mexico dropped) gives -6.3 ; from New Mexico's switches only (Tennessee dropped) gives -10.3 . Say explicitly that the labels mean 'identified from that state's switch', not 'that state's data alone', since this confused the mock audience.
- **CLICK 3:** Adding the electorate's partisanship, the governor's party and the legislature brings it to -4.7 .
- I want to be direct about what this rests on. The within-state estimate is identified by two states, so I use inference built for few clusters. The wild-bootstrap p-values range from 0.05 to 0.63.

Why state trends, if asked: state fixed effects take out each state's fixed advantages, like how windy it is. But the payoff to wind grew enormously after 2000, so windy states would have pulled ahead regardless of who regulates them. New Mexico's elected years coincide with exactly that build-out. The state trend lets each state follow its own path, so the estimate comes from departures from that path around the switch. Without trends, the Plains wind build-out gets credited to the institution. The trade-off: trends can also absorb an institutional effect that builds up gradually, so they may understate it.

- I read the result here overall as two careful case studies pointing in the same direction, not a precise estimate. That's exactly why the rest of the talk tests the mechanisms directly.

20. Selection and Generation: What We Learn

- Expected: less renewable generation under elected Commissions.
- **CLICK 2:** Found: in the two states that changed their method, about 9 points lower while elected, about 5 net of state partisanship, and each switch alone gives the same sign.

- **CLICK 3:** Weight: two switching states, wild-bootstrap p of 0.22. Two careful case studies, not a precise estimate. The Why-two-states button has the strengths-and-limits slide.
- **CLICK 4:** The pivot: the mechanism has to carry the argument. Where do green groups compete, and do voters reward the transition? That is Parts II and III. There is no separate opener slide any more: go straight into the green-groups evidence.

21. Where Green Groups Put Their Effort

- Least is known about pro-renewable groups: how much they campaign, how much they lobby, and what it buys them. Corporate and utility lobbying is well documented; this side is not.
- Three things to check, which replace the old expectations slide: they put more money and time into regulatory work than into campaigns; inside, their resources approach incumbents' while in elections they do not; and for a given effort, their requests fare better before appointed Commissions.
- **CLICK 2:** Campaigns: every contribution in Commissioner races and energy ballot campaigns, from Follow the Money.
- **CLICK 3:** Regulatory proceedings: every filing in the first 180 days of every eligible PUC proceeding: resource plans, rate cases, renewable programs, fuel cost, certificates.
- **CLICK 4:** Four matched elected-appointed pairs: Arizona-Nevada, Georgia-Kentucky, Louisiana-Arkansas, Mississippi-West Virginia; plus New Mexico before and after 2023.
- **CLICK 5:** Effort in dollars: each filing's preparation cost, pages times hours per page times the state's lawyer wage, benchmarked against Form 990 budgets. The Measure button has the formula and the \$300 an hour benchmark.
- **CLICK 6:** And for each request, its position and its disposition in the final order, so I can ask what effort buys.

22. Green Groups Give About 1% of Campaign Money

- Two contexts, one answer. Maine Question 1 in 2021, the highest-profile energy referendum in years (the NECEC transmission line): \$94.1M in total spending, and green nonprofits gave \$284k, 0.3 percent. Georgia PSC races over 25 years, the archetypal elected state: \$9.9M in total, green nonprofits \$110k, 1.1 percent.
- For scale: one ballot measure drew about ten times all Georgia PSC races over 25 years, and 99 percent of Maine's money was corporate (NextEra alone \$20.3M, protecting market share). The Sierra Club's Georgia chapter gave PSC candidates \$3,500 in 25 years.
- The table version is in the appendix if someone wants the rows.

23. Green Money Not Lacking Because No Green Candidates

- Maybe green money is small because there was no one worth funding. So I hand-coded the renewable position of all 65 Georgia PSC candidacies from 1998 to 2022 and linked every contribution.
- Strongly pro-renewable candidates got the same green share, 0.6 percent, as candidates with no identifiable position. The only category above one percent is the four mixed candidates, and that is a handful of dollars.
- The vivid case: Lindy Miller, Sierra Club-endorsed, raised \$1.7M in 2018. \$201 of it came from pro-environmental donors.

- Nearly half of candidacies take no position at all; zero LCV endorsements, three Sierra Club endorsements in 25 years.

24. Green Groups Lobby; They Rarely Campaign

- Note to self: this and the next two slides use the simulated docket build; keep the claims at the level of the pattern, not the decimals.
- Same organization, same state, same year, both channels. Left: an NGO's regulatory work is worth about \$115k a year in preparation-cost terms against about \$2.5k of campaigning; 642 hours versus 20.
- **CLICK 2:** Right: relative to utilities and fossil firms in the same sample, green groups hold 0.86 of incumbents' resources inside the regulatory process and 0.01 in elections. Inside they are nearly at parity; in elections they are a rounding error.

25. Green Lobbying Rivals Incumbents' Only Under Appointment

- Now split by selection system. Under appointment, green lobbying reaches 74 percent of the incumbents' resources; under election, 28 percent. Campaign resources are 4 percent in both.
- So the institution changes where green effort goes and how close to parity it gets; it does not change their campaign effort at all. The Tables button has the underlying rows and the hours allocation.

26. Under Appointment, Green Groups Participate More and Win More

- Four matched pairs; appointed minus elected, in percentage points, with 95 percent intervals clustered by state.
- Green groups participate in 11 points more of eligible proceedings under appointment.
- And, conditioning on prior effort, their requests are fully granted 25 points more often, fully or partly granted 27 points more often. The conditioning matters: it separates the return to effort from effort itself.
- Effort rows and the full table are behind the button; the effort gap combines participating more often with doing more once there.

27. Green Groups' Biggest Campaign Gift: Ending Commissioner Elections

- Back to the opening figure, now as evidence rather than a puzzle. When green groups do campaign, their largest sums go to ending Commissioner elections.
- LCV alone gave \$300,000 here: about 85 times what the Sierra Club's Georgia chapter gave PSC candidates in 25 years, and about 130 times what all pro-environmental donors gave New Mexico's own PRC candidates in 15 years.
- This is revealed preference, not an effect estimate: the same organizations that decline to fund Commissioner candidates paid to end Commissioner elections.

28. New Mexico: Before and After Appointment

- Simulated build; say what the panels are. New Mexico is the one state that moved from election to appointment in my docket window. Shading is 2020-22, the anticipation period after Amendment 1 passed; the dashed line is 2023.

- Left: green filings rise after 2023, both from organizations already active before and from new entrants. Right: the share of their requests fully granted rises as well.
- Caveats are behind the button: the 2023 change bundled selection with membership and size, so this is a case, not an estimate; anticipation is kept separate; utilities are a comparison series, not a placebo.

29. Interest Groups: What We Learn

- Expected: green groups lobby rather than campaign, and get more for it under appointment.
- **CLICK 2:** Found: in Commissioner elections green money is marginal, one percent or less, and does not follow pro-renewable candidates.
- **CLICK 3:** The same organizations put about 45 times more into regulatory proceedings than campaigns, and there come close to parity with incumbents, under appointment.
- **CLICK 4:** For the same effort, their requests are granted 25 points more often before appointed Commissions.
- **CLICK 5:** Revealed preference: offered the chance to abolish Commissioner elections, they paid for it.
- **CLICK 6:** The sentence to land: despite their grassroots nature, green groups behave like classic corporate interest groups, and the institution decides how far that gets them. Then the hand-off: this only works if voters are not pulling the other way, which is Part III.

30. Part III opener: Do voters reward the transition at the ballot box?

- If they did, elected Commissions would face pressure toward the transition and the whole argument would run backwards. So this is the check.

31. Testing the Voter Assumption

- The argument assumes most voters put low bills ahead of the transition.
- **CLICK 2:** If voters rewarded renewables even when they cost something, elected Commissions would face pressure toward the transition.
- **CLICK 3:** Prior work is mostly stated support, which fades with cost. Literature button if asked.
- **CLICK 4:** So I measure what voters do when renewables carry a cost: statewide and local ballot measures, precinct returns, and individual cast vote records.

32. Few Energy Ballot Measures Are About Renewables / Only 26 Statewide Votes on Renewables or Climate in 25 Years

- All 1,475 energy ballot measures from 2000 to 2024, one square per ten measures, by type. Most of it is public power and aggregation, facility siting, bonds and taxes.
- **CLICK 2:** Only 26 statewide votes in 25 years were about renewables or climate, while nearly 30 states adopted an RPS through their legislatures. The pro-renewable side won 15 of the 26 but lost every carbon-price vote. Typology and the list of all 26 are behind the buttons.
- Keep the aside about citizen petitions for questions; it is not on the slide any more.

33. In Deep-Blue Precincts, Losing Measures Ran 27 Points Behind Democrats / Even Winning Measures Trail the Democratic Vote

Carried over from the first-draft notes (adapted where the slide changed).

- Each line is one statewide vote, drawn across precincts sorted by how Democratic they voted at the top of the ticket. The dashed line is where support would be if it simply followed partisanship.
- **CLICK 1:** Here are all eleven statewide votes the pro-renewable side lost. Every one sits below the line. In precincts that were at least 70 percent Democratic, these measures trailed the Democratic vote by 27 points for the median measure, and by as much as 43. Precincts that were merely Democratic-leaning voted against them almost uniformly.
- **CLICK 2:** Here are the eleven wins. They run closer to the Democratic vote, and some do better than it in competitive precincts. But even the wins rise less than one for one with partisanship. These votes only happen in initiative states, and getting on the ballot takes organized support, so this is probably an upper bound on how much voters want renewable energy.
- The Arizona-only opening click is gone from the deck; the Arizona 2018 candidate-versus-policy slide is in the appendix if someone asks whether electing a pro-renewable Commissioner means the same thing.

34. Free Climate Pledges Win Big Locally / Climate Measures That Cost Something Draw 12 Points Less

Carried over from the first-draft notes (adapted where the slide changed).

- **CLICK 1:** Local ballots give many more chances to ask the same question, including in the most Democratic cities in the country. I use complete lists of local measures where they exist, and I fix the set of places and years before looking at any outcomes. The hollow circles are advisory questions: non-binding, so voters can support renewable energy for free. They do. The average is 69 percent, and 80 percent where Democrats won at least 70 percent of the vote.
- **CLICK 2:** Now the measures that would actually cost something: a tax, a fee, public debt, a mandate or a public utility (the filled triangles). The average drops to 57 percent, 12 points less. Where Democrats won at least 70 percent, these measures lost 10 of 34 times. These are different places, so the cleanest comparison is within the same city. In Berkeley and San Francisco, which voted on both kinds of question, the costly measures ran 32 points behind the free ones.
- Full table behind the button. The same-ballot benchmark slide (every costly measure below the Democratic vote; 7 of 9 recent ones below the other local taxes) is no longer in the main deck; use it for questions about whether voters just dislike taxes.

35. On Costly Climate Measures, the Parties Split by 42-63 Points / Republicans Give Climate Taxes 16-19 Points Less Than Their Other Taxes

Carried over from the first-draft notes (adapted where the slide changed).

- **CLICK 1:** Precinct data can't tell us how individual Democrats and Republicans voted, but cast vote records can: they record every choice on each anonymous ballot. I classify each voter by the party of their U.S. House vote. On the costly measures, the gap between the parties is 42 to 63 points. On local taxes nationally in 2020, it was 19 points: 72 percent of Democrats and 52 percent of Republicans. Renewable energy is far more polarized than ordinary local spending.
- **CLICK 2:** Here I compare each voter's vote on the climate measure with that same voter's votes on the other local taxes on their ballot. Republicans discount the costly climate measures by 16 to 19 points, but by six points or less when the measure imposes no new cost. So it's the cost, not the renewable label. Democrats are more mixed: they gave Cranston's energy bonds a bit more than their other taxes, but Denver's climate sales tax less, and Berkeley's utility tax 26 points less.

- The California 2024 bond comparison (Props 2 and 4, Marin and Santa Barbara) is in the appendix; it is the cleanest same-size, same-ballot contrast if someone pushes on this.

36. Voters: What We Learn

Carried over from the first-draft notes (adapted where the slide changed).

- Expected: little support for renewables once they cost something, even among Democrats.
- **CLICK 2:** Found: voters support renewables when it is free, and much less when it costs them.
- **CLICK 3:** Statewide: in precincts at least 70 percent Democratic, the eleven losing measures ran a median 27 points behind the Democratic vote.
- **CLICK 4:** Same electorate, free versus costly: advisory questions draw 69 percent, cost-imposing measures 57: 12 points less overall, 22 in the most Democratic counties, 32 within Berkeley and San Francisco.
- **CLICK 5:** Same voter, same ballot: Republicans give a climate tax 16 to 19 points less than their other local taxes, so these measures depend almost entirely on Democratic votes.
- **CLICK 6:** For my argument, this means an elected Commissioner, however Democratic, faces a re-election signal that penalizes acting on the transition. The transition's electoral coalition isn't the Democratic electorate; it's the most Democratic fraction of it.

37. Summary

- Outcome: in the two states that changed how they select regulators, renewables grew more slowly while the Commission was elected.
- **CLICK 2:** Why: green groups are far more productive inside the regulatory process than in campaigns, so insulated regulators are where their influence counts.
- **CLICK 3:** Voters: no electoral pressure toward the transition; costly measures trail even where Democrats win big.
- **CLICK 4:** Revealed preference: offered the chance to end Commissioner elections, green groups paid for it.
- **CLICK 5:** Elections may not serve consumers when policy trades costs today for benefits later.
- **CLICK 6:** End on the title: groups built on citizen participation get more from insulated regulators, and act on it. They trade democracy for influence.

38. Implications

- Regulator selection: the standard model holds when the only conflict is over price; once industrial change splits both coalitions, elected regulators are pro-consumer only in the narrow sense of prices today.
- **CLICK 2:** Interest groups, the contribution beyond energy: where a group seeks influence depends on how institutions select decision makers, and groups built on mass participation are not exempt.
- **CLICK 3:** Civil society: rational adaptation to US institutions, or a departure from a democratic mandate? Leave it open. And appointment is not a shortcut: appointed Commissions follow the governor, so a Republican governor in a blue state produces a red-state Commission. Scope button has that.
- **CLICK 4:** Beyond energy: any policy with immediate costs and delayed, diffuse benefits should face the same electoral headwind.

39. Next Steps

- Outcomes Commissions decide directly, so selection's effect on decisions is observed rather than inferred from generation.
- **CLICK 2:** Complete the docket collection for the matched pairs and New Mexico, with a second coder for dispositions; this replaces the simulated build.
- **CLICK 3:** The companion paper on the full universe of energy and climate ballot measures, and more cast vote records.

40. Thank you

- Stop. Do not add a last point.

Things to have ready for questions

- Tennessee and the Tennessee Valley Authority. Tennessee's Commission doesn't govern most of the state's generation, because the TVA does. So half of your within-state identification comes from a state where the mechanism has limited reach. Know what the authority backup slide shows for Tennessee specifically (excluding TN and NE: -10.4).
- Why state trends. The 'Why Prefer the Trend-Inclusive Estimate?' backup is your answer. It's also the one place the no-trends number still appears.
- Composition as a post-treatment variable. The results hold composition fixed, but selection itself shapes composition. Someone may ask for the total effect without conditioning on composition. The composition-as-outcome tables are in Appendix A.
- Is the gap concentrated among Democratic Commissions? (Appendix F, pooled margin plots; cross-state, so not in the main talk.) Restricting to states where the Democratic vote share is at least 50 percent: by composition on personal party, the gap widens as the Commission becomes more Democratic; on the appointer rule within state it is roughly stable, -11.1 at an all-Republican Commission and -7.5 at an all-Democratic one; by electorate it narrows and is indistinguishable from zero above about 55 percent Democratic.
- Isn't New Mexico one bundled case? Yes: the 2023 change bundled selection, membership, and size. Amendment 1 is revealed-preference evidence, not an effect estimate. In the dockets, anticipation is kept separate and transition-spanning proceedings are flagged.
- Why would pro-consumer groups prefer less democracy? Not less democracy in general: an arena where their resources count and incumbents' electoral advantages sit idle; under appointment the governor builds the coalition for them.
- Aren't voters just discounting rationally? Possibly; the benchmark is social welfare, which includes the externality and future consumers. The empirical claim does not depend on resolving it: whatever its source, the electoral signal runs against the transition.
- Does federal lobbying behavior tell us about states? The same organizations (Sierra Club, NRDC, EDF, LCV) operate at both levels; federally, environmental groups spend \$36 on lobbying per \$1 of candidate contributions, versus \$23 for fossil fuel and utilities.